

Auto. Assn. Inter-Ins. Bureau v. Superior Court (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

2. Attorney fees, costs, and plaintiff incentive award

Plaintiff seeks one-third (33.3%) of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, consideration of the fee award was deferred to the motion for final approval.

Counsel now provides an estimated lodestar fee of \$93,345.00. This is based on a total of 128.2 hours, with hourly rates ranging from \$600-850.00. The amount of fees billed exceed the amount requested. No adjustment is necessary. Litigation costs of \$16,083.46 are reasonable and are approved. The finds that the amount of \$4,990.00 to Apex Class Action, LLC (“APEX”) for its settlement administration expenses is reasonable.

Plaintiff requests an incentive payment of \$10,000. Criteria for evaluation of such requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. She submits a declaration attesting to his time and effort spent on the matter (about 30 hours), as well as the risk she took by becoming a plaintiff. She released other individual claims, but does not suggest that she had any other claim of value that is released in the settlement. All things considered, the amount is approved.

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval. Notice to the class was adequately provided.

Ruling

The motion is **granted**. Counsel are directed to conform the proposed order lodged on February 10, 2026 to reflect this tentative ruling, the other findings in the previously submitted proposed order, and a final judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, to be arranged by counsel in consultation with the Department Clerk.

Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date, which shall be set by the Clerk of the Court in due course (not later than ninety (90) days from the date of this hearing). Five percent (5%) of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court. No appearance is required at the hearing on March 4, 2026.

4. 9:00 AM CASE NUMBER: C23-01583

CASE NAME: S A VS. EARTH SEEDS LLC

*HEARING ON MOTION FOR DISCOVERY TO COMPEL AN I.M.E. OF PLAINTIFF, S.A.

FILED BY: EARTH SEEDS LLC

TENTATIVE RULING:

Summary

Defendant's Motion to Compel Independent Mental Examination of Plaintiff S.A. is **granted** as set forth herein.

Background

In this litigation, Plaintiffs allege that Defendant Rachel Bolden-Kramer's One and Half year old son touched S.A.'s penis while S.A. was using the bathroom at the Little Earth Seeds Preschool. Later, S.A. began displaying troubling behavior and had informed his parents that another older student had placed his finger in S.A.'s anus. The lawsuit alleges that Defendant Earth Seeds did not properly staff the preschool and failed to properly supervised the children. S.A. claims to have suffered emotional distress and seeks future treatment for this injury. After meeting and conferring, Defendants claim that Plaintiffs would not allow discovery into these allegations by refusing to permit an independent mental examination.

On September 4, 2025, Defendants Earth Seeds LLC dba Little Earth Seeds Preschool and Rachel Bolden-Kramer ("Defendants") filed a Motion to Compel an independent mental examination of Plaintiff S.A. and guardian ad litem / parent Jasmine Hudson and S.A.'s father ("Plaintiffs") to submit to a mental examination, testing and interview. The Motion is supported by a Memorandum of Points and Authorities, Notice and Declaration of Counsel Nancy McPherson. The Motion requests that Dr. Anlee Kuo perform a mental examination and appoint Dr. Angie Branham, Ph.D., to perform relevant psychological testing.

Plaintiffs filed an opposition on February 23, 2026 claiming that the examination is overly broad, subjecting S.A. to a seven-hour multi-modal multi-practitioner mental examination that would include autism, IQ, attention and learning disabilities and parenting style impact without offering proof that these tests are necessary and relevant to the injuries. Plaintiff objects to the IME, but requests the following limitations in the event the Court was inclined to permit it:

1. The exam must be limited to only tests administered to determine Plaintiff's scope and severity of emotional distress, specifically the Trauma Symptom Checklist for Children (TSCC). No other tests shall be permitted, absent subsequent written agreement of the parties otherwise;
2. The exam must not include any interview or questions that require Plaintiff to recount or retell the facts of the subject incident;
3. There shall be no oral or written questions related to Plaintiff's medical history, medications, academic performance, or "vocational" performance, and there shall be no tests for Autism, IQ, learning styles and abilities or disabilities, absent a demonstration of good cause for such testing resulting in the agreement between the parties and or a subsequent Court order for such tests;
4. A reasonably tailored mental exam would take no more than 1-1.5 hours and would automatically comply with Code of Civil Procedure Section 2032.340;

5. Plaintiff's parents who are not parties to this suit and over whom the Court has no jurisdiction shall not be required to participate in any mental examination, evaluation or interview;
6. Plaintiff is entitled one support person during the mental examination, such as a parent, or a counselor or therapist; and
7. . The raw testing data, interpretations, conclusions, and audio recording from the examination must be produced to Plaintiff's counsel within five business days or Defendants forfeit their right to use any data or opinions derived therefrom at trial.

Defendants did not file a reply brief by February 27, 2026 as stipulated.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to Independent Medical Examinations, Defendants brought their motion pursuant to Cal. Code of Civ. Proc. §§ 2032.310 which, states A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

Cal. Code of Civ. Proc. § 2032.320(c) states: (1) A mental examination conducted under this chapter

shall be performed only by a licensed physician, or by a licensed clinical psychologist who holds a doctoral degree in psychology and has had at least five years of postgraduate experience in the diagnosis of emotional and mental disorders.

Additional protections are afforded under Cal. Code of Civ. Proc § 2032.510, which permits an attorney or representative “to attend and observe any physical examination conducted for discovery purposes, and to record stenographically or by audio technology any words spoken to or by the examinee during any phase of the examination” provided that he/she does not participate or disrupt the examination.

In analyzing this motion in light of the foregoing authorities, the Court finds that a mental examination of the minor child, S.A. is appropriate, as he is claiming emotional distress and will be seeking future medical care relating to this alleged injury. As such, good cause exists to permit the mental IME as set forth by Defendants. However, the Court also finds good cause to impose some, but not all, limitations requested by Plaintiffs as follows.

Ruling

Good cause appearing, Defendant’s Motion to Compel the Independent Mental Examination of Plaintiff S.A. is **granted** as follows:

1. The examination shall be conducted by Dr. Anlee Kuo and Dr. Angie Branham, Ph.D., to perform relevant psychological testing.
2. The examination shall take place no later than forty five (45) days from the date of this order, or at some future date as stipulated by the Parties.
3. The examination shall not take more than 5 hours over two consecutive days.
4. The exam must be limited to only tests administered to determine Plaintiff’s scope and severity of emotional distress, specifically the Trauma Symptom Checklist for Children (TSCC). No other tests shall be permitted, absent subsequent written agreement of the parties otherwise;
5. There shall be no tests for Autism, IQ, learning styles and abilities or disabilities, absent a diagnoses of autism or learning disabilities, in which case, such testing shall be reasonably limited to the effect of said autism or learning disabilities on S.A.’s emotional distress as determined by Dr. Kuo or Dr. Branham in their professional medical opinion.
6. Plaintiff’s parents who are not parties to this suit and over whom the Court has no jurisdiction shall not be required to participate in any mental examination, evaluation or interview.
7. Plaintiff’s parents may designate a support person to attend the mental examination, provided that this support person does not interfere with, disrupt or participate in the examination, which shall include Plaintiff’s attorney per Cal. Code of Civ. Proc § 2032.510.
8. The raw testing data, interpretations, conclusions, and audio recording from the examination must be produced to Plaintiff’s counsel within 15 business days. However,

neither Dr. Kuo nor Dr. Branham are required to prepare a comprehensive report during that timeframe.

9. The provisions of Cal. Code of Civ. Proc § 2032.510 shall apply to this mental examination.
10. Defendants' attorney shall prepare and e-file an order that conforms to this order no later than five (5) day from the date of this hearing, attaching a copy of this tentative ruling.

5. 9:00 AM CASE NUMBER: C23-02424
CASE NAME: DANIEL HOCOG VS. SERVICE MANAGEMENT SYSTEMS, INC.
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: HOCOG, DANIEL THOMAS ATALIG
TENTATIVE RULING:

Summary

Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement is **granted** as set forth herein.

Background

On September 24, 2025, Plaintiffs Daniel Thomas Atalig Hocog and Alfred Estrada Santos Jr.'s (collectively, "Plaintiffs") filed their Motion for Preliminary Approval of Class Action and PAGA Settlement ("Motion"), including the Declaration of John G. Yslas, and the Joint Stipulation Re: Class Action and PAGA Settlement ("Initial Settlement") and Supplemental Agreement to Class Action and PAGA Settlement Agreement ("Supplemental Agreement"). The relief sought is as follows:

1. Granting preliminary approval of the proposed Joint Stipulation Re: Class Action and PAGA Settlement ("Initial Settlement") and Supplemental Agreement to Class Action and PAGA Settlement Agreement ("Supplemental Agreement") (collectively, with "Initial Settlement", the "Settlement").
2. Conditionally certifying the proposed Class for settlement purposes only;
3. Conditionally appointing Plaintiffs as the Class Representatives;
4. Conditionally appointing Wilshire Law Firm, PLC as Class Counsel;
5. Appointing Apex Class Action Administration as the Settlement Administrator; and
6. Setting a final approval hearing date

A. Settlement Terms

The original complaint was filed on September 26, 2023, raising class action claims on behalf of non-exempt employees, alleging that Defendant Services Management Systems, Inc ("Defendant") violated the Labor Code by failing to pay minimum wages and failure to pay all wages due on separation. A First Amended Complaint was filed on August 26, 2026. The main terms of the Settlement are as follows:

1. A Gross Settlement Amount of \$265,000.00, which will be distributed to approximately 321 Class Members on a pro rata basis according to the total workweeks worked by each Class Member during the Class Period;
2. Attorneys' fees of up to one-third (1/3) of the Gross Settlement Amount (currently